

TENTATIVE RULINGS

LAW & MOTION

DEPT C25

Judge Gassia Apkarian

The court will hear oral argument on all matters at the time noticed for the hearing, **unless the Court has stated that the matter is off calendar.** Do not call the department to verify if you should appear or not. Please read below for the information. **If you would prefer to submit to the Court's tentative without oral argument, advise all counsel first to find out if all parties are submitting, and then the moving party is to telephone the clerk at (657)622-5225 with the status of all parties.** If the moving party has submitted on the matter and there are no appearances by any party at the hearing, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by **12:00 p.m.** the day before the hearing. Generally, motions will not be continued or taken off the calendar after the tentative has been posted. **The moving party shall give notice of the ruling.**

August 18, 2026
10:00 AM

If you want a transcript, you must provide your own court reporter.

#	Case Name	Tentative
101	Stockstill vs. Interinsurance Exchange of The Automobile Club 26-01558281	Demurrer to Complaint FAC filed 07/29/2026 (ROA 38) - Demurrer is off calendar as MOOT
102	Johnston vs. Disneyland 25-01515207	1. Demurrer to First Amended Complaint Defendant, Walt Disney Parks and Resorts U.S., Inc. dba Disneyland ("Defendant"), moves for an order sustaining the demurrer to every cause of action alleged in the First Amended Complaint of Plaintiff, Jeffrey Johnston ("Plaintiff"). Defendant contends that the claim in the First Amended Complaint is barred by Privette v. Superior Court (1993) 5 Cal.4th 689 because Plaintiff was an employee of an independent contractor that was hired to perform work at Defendant's property, and that neither the retained control exception nor concealed hazard exception applies as there is no allegation that any act of Defendant

		amounted to affirmative control over the work performed pursuant to <i>Sandoval v. Qualcomm Incorporated</i> (2021) 12 Cal.5th 256, for the former exception, and that there is no allegation of either actual or constructive knowledge of the existence of a lit burner pursuant to <i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, for the latter exception. Defendant thus contends that because neither exception to the Privette doctrine applies, Plaintiff cannot state facts sufficient to support a cause of action for negligence against Defendant. Plaintiff argues Plaintiff has adequately pleaded ultimate facts supporting an exception to the Privette doctrine by pleading ultimate facts demonstrating that Defendant affirmatively contributed to the workplace injury through its retained control. “Generally, when employees of independent contractors are injured in the workplace, they cannot sue the party that hired the contractor to do the work. [Citation.]” (<i>Seabright Ins. Co. v. US Airways, Inc.</i> (2011) 52 Cal.4th 590, 594 (“Seabright”) citing to <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689.) The Privette rule applies when the party that hired the contractor fails to comply with workplace safety requirements concerning the contract's precise subject matter, and the injury is alleged to have occurred as a consequence of that failure. (<i>Seabright, supra</i>, 52 Cal.App.4th at p. 594.) “By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes to the contractor’s employees to ensure the safety of the specific workplace that is the subject of the contract. That implicitly delegation includes any tort law duty the hirer owes to the contractor’s employees to comply with applicable statutory or regulatory safety requirements.” (<i>Ibid.</i>) “When a person or organization hires an independent contractor, the hirer presumptively delegates to the contractor the responsibility to do the work safely. [Citations.]” (<i>Sandoval v. Qualcomm Incorporated</i>
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(2021) 12 Cal.5th 256, 269 (“Sandoval”).) “Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation.] Considering this presumption, we have refused to extend liability to hirers even on theories of nominally ‘direct’ liability, such as negligent failure to require precautions or negligent hiring of an incompetent contractor. [Citation.]” (Id. at p. 270.) “But that presumption gives way to two recognized exceptions: where the hirer either withholds critical information regarding a concealed hazard (Kinsman v. Unocal Corp. (2005) 37 Cal.4th 659, 664, 36 Cal.Rptr.3d 495, 123 P.3d 931 (Kinsman)); or retains control over the contractor’s work and actually exercises that control in a way that affirmatively contributes to the worker’s injury (Hooker v. Department of Transportation (2002) 27 Cal.4th 198, 202, 115 Cal.Rptr.2d 853, 38 P.2d 1081 (Hooker)).” (Id. at p. 264.)

The Privette doctrine gives way to exceptions when a hirer withholds critical safety information and fails to effectively delegate its responsibilities in practice, or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work. (Id. at p. 271.) In Kinsman, the California Supreme Court “articulated the rule that a landowner-hirer owes a duty to a contract worker if the hirer fails to disclose to the contractor a concealed premises hazard. [Citation.]” (Ibid.) In Hooker, the California Supreme Court “articulated the rule that the hirer owes a duty to a contract worker if the hirer retains control over any part of the work and actually exercises that control so as to affirmatively contribute to the worker’s injury. [Citation.]” (Ibid.)

There is an exception when the hirer’s conduct has affirmatively contributed to the injuries of the contractor’s employee. (Hooker v. Department of Transportation (2002) 27 Cal.4th 198, 211-212 (“Hooker”).) “[M]ere retention of the ability to control safety conditions is not enough. ‘[A] general contractor

		owes no duty of care to an employee of a subcontractor to prevent or correct unsafe procedures or practices to which the contractor did not contribute by direction, induced reliance, or other affirmative conduct’ ” (Id. at p. 209.) “ ‘ The mere failure to exercise a power to compel the subcontractor to adopt safer procedures does not, without more, violate any duty owed to plaintiff. . . .’ ” (Ibid.) Under the retained control exception in Hooker, the plaintiff “must establish not only that the hirer retained control over the contracted work, but also that the hirer actually exercised that retained control in a manner that affirmatively contributed to the contract worker’s injury. [Citation.]” (Sandoval, supra, 12 Cal.5th at p. 274.) A hirer ‘retains control’ where it retains a sufficient degree of authority over the manner of performance of the work entrusted to the contractor.” (Ibid.) Additionally, “a hirer’s authority over the contracted work amounts to retained control only if the hirer’s exercise of that authority would sufficiently limit the contractor’s freedom to perform the contracted work in the contractor’s own manner. [Citations.]” (Id. at p. 275.) “A hirer ‘actually exercise[s]’ its retained control over the contracted work when it involves itself in the contracted work’ such that the contractor is not entirely free to do the work in the contractor’s own manner.’ [Citations.]” (Sandoval, supra, 12 Cal.5th at p. 276.) “Unlike ‘retained control,’ which is satisfied where the hirer retains merely the right to become so involved, ‘actual exercise’ requires that the hirer in fact involve itself, such as through direction, participation, or induced reliance. [Citations.]” (Ibid.) “ ‘Affirmative contribution’ means that the hirer’s exercise of retained control contributes to the injury in a way that isn’t merely derivative of the contractor’s contribution to the injury. [Citation.]” (Sandoval, supra, 12 Cal.5th at p. 277.) “Where the contractor’s conduct is the immediate cause of injury, the affirmative contribution requirement can be satisfied only if the hirer in some respect induced – not just failed to prevent – the
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		contractor’s injury-causing conduct. [Citations.]” (Ibid.) “It is not enough for the hirer’s exercise of control to incidentally give the hirer the opportunity to prevent the contractor’s injury-causing conduct. [Citation.]” (Ibid.) “A hirer’s conduct also satisfies the affirmative contribution requirement where the hirer’s exercise of retained control contributes to the injury independently of the contractor’s contribution (if any) to the injury. [Citations.]” (Ibid.) “Importantly, neither ‘actual exercise’ nor ‘affirmative contribution’ requires that the hirer’s negligence (if any) consist of an affirmative act. The hirer’s negligence may take the form of any act, course of conduct, or failure to take a reasonable precaution that is within the scope of its duty under Hooker. [Citations.]” (Ibid.) “If a plaintiff provides that the hirer actually exercised retained control in a way that affirmative contributed to the contract worker’s injury, the plaintiff establishes that the hirer owed the contract worker a duty of reasonable care as to that exercise of control,” and “[t]he Privette doctrine does not bar liability. [Citation.]” (Sandoval, <i>supra</i>, 12 Cal.5th at p. 278.) Defendant contends that Sandoval is factually analogous to the case at issue. In Sandoval, the California Supreme Court found that substantial evidence did not support the conclusion that the defendant had both retained control over some part of the independent contractor’s work and actually exercised that control in a manner that affirmatively contributed to plaintiff’s injury. (Sandoval, <i>supra</i>, 12 Cal.5th at p. 279.) The facts in Sandoval involved an electrical parts specialist who sustained third-degree burns after he triggered an arc flash from a circuit he did not realize was “live” with flowing electricity, and where the contractor for whom he had been working had removed the protective cover on that live circuit while work was underway. (Id. at p. 264.) Qualcomm (the hirer) hired TransPower Testing, Inc., an electrical engineering service company, to inspect and verify the amperage capacity of Qualcomm’s existing switchgear equipment. (Id. at p. 265.) TransPower’s president hired Sandoval (plaintiff), who was an electronical parts supply
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and repair specialist with ROS Electrical Supply & Equipment to accompany him at an inspection for Qualcomm. (Id. at p. 266.) For this inspection, Qualcomm approved a scope of work authorizing TransPower to inspect the main cogen circuit from the front and back but did not authorize TransPower to inspect (or expose) any other circuits at this time. (Ibid.) On the morning of the inspection, Qualcomm reminded TransPower’s president and his team that some circuits in the switchgear would remain live, and Qualcomm performed a power-down process in the switchgear room to ensure no live electricity flowed through the main cogen cubicle during the inspection. (Ibid.) All other circuits in the switchgear room remained live with utility power. (Ibid.) After Qualcomm’s employees left the room, TransPower’s president instructed his employee to remove the bolted-on back protective panel from the immediately adjacent GF-5 cubicle, which he knew was still live with electricity from utility power. (Id. at p. 267.) At some point during the inspection, Sandoval walked away from the rest of the TransPower team because he would have trouble judging the size of some of the main cogen busbars from the front side of the cabinet, and he thought he might get a better view from the back. (Ibid.) As he approached the back side of the cabinets, he was holding a metal tape measure, which triggered an arc flash from the live, exposed GF-5 circuit, and he was set aflame. (Ibid.) As a result, Sandoval sustained third-degree burns to about one-third of his body surface, in addition to second-degree burns, pneumonia, multiple infections, lasting discomfort, and the loss of full use of his left arm. (Id. at p. 268.)

Under these facts, the California Supreme Court found that Qualcomm did not owe plaintiff a retained-control duty regarding the power-down process itself because the power-down process was not within the scope of work Qualcomm had entrusted to TransPower: inspecting the main cogen circuit. (Sandoval, supra, 12 Cal.5th at pp. 279-280.) The Court also found that Qualcomm did not retain control over the inspection merely by declining to shut down the other circuits or to give TransPower the authority to do so as TransPower “was aware of and had

	ample freedom within the scope of its entrusted work to accommodate the presence of the live circuits effectively in its own manner,” (Id. at p. 280.) The Court additionally found that while Qualcomm may have had authority by virtue of performing the power-down process or otherwise, to require specific precautions during the inspection, it did not “actually exercise” that authority as TransPower remained entirely free to implement any precautions, i.e., supervision, a personal warning for Sandoval, arc flash protections suits, barricades, and/or additional warning signage, in its own manner. (Id. at pp. 280-281.) The Court noted that there was no argument or evidence that Qualcomm’s performance of the power-down process induced TransPower’s failure to take any of these precautions itself. (Id. at p. 281.) The Court further found that Qualcomm did take one precaution by leaving the bolted-on protective covers over all of the live circuits for which Qualcomm could be said to have retained and actually exercised control over the inspection by implementing this precaution, but there was no evidence that Qualcomm “affirmatively contributed” to Sandoval’s injury. (Ibid.) Here, the First Amended Complaint (“FAC”) alleges that Plaintiff is an employee of California Industrial Refrigeration Machine Company and was employed as an appliance and HVAC technician on or about October 2024, when he was sent to Disneyland to troubleshoot an oven that was not working properly. (FAC, ¶¶ 3, 9.) It is alleged that on or about October 15, 2024, Plaintiff’s employer sent Plaintiff to Disneyland to make the repairs. (FAC, ¶ 10.) It is alleged that “[a]t the outset of his work, JOHNSTON spoke with DISNEYLAND’S manager to make sure that all nearby gas lines were disconnected because JOHNSTON would be working on the gas lines”; that “contrary to standard safety practices, DISNEYLAND did not maintain a main shut off valve at the meter bank placing persons such as Plaintiff in peril”; that “JOHNSTON did not have the ability, access or knowledge of Disney’s main shut off and reasonably relied on the representation of the DISNEY manager”; and that “[t]hrough its manager, DISNEYLAND assured
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JOHNSTON that all nearby gas lines has [sic] been turned off and that nothing burning gas was in use.” (FAC, ¶ 11.) The FAC additionally alleges as follows:

After receiving this assurance from DISNEYLAND's, JOHNSTON turned off the gas on the Wolff Oven he was there to repair, cracked the gas line to make sure it was off, and replaced all the parts. At that time, he noticed the line was disconnected, and he went to his van to get tape and supplies to reconnect it. Unbeknownst to him, there was a burner on next to the oven, and when JOHNSTON attempted to reconnect the line, he was engulfed in a fiery explosion, causing second-degree burns to his face and hands.

(FAC, ¶ 12.)

The FAC further alleges:

DISNEYLAND failed to exercise due care in the maintenance of its equipment, failed to notify JOHNSTON of any artificial dangers that may cause serious risk of injury and specifically the gas appliances referred to herein, which were so ill maintained as to present an unreasonable danger. DISNEYLAND'S manager failed to use reasonable care by permitting Plaintiff to work on gas lines he had been assured were turned off and by failing to turn off said lines, thereby concealing a dangerous condition. DISNEYLAND unreasonably failed to have a main shut-off valve for the referenced gas appliances as required by local and state law.

(FAC, ¶ 13.)

Contrary to Defendant's assertion, the alleged facts here are not analogous to Sandoval. In Sandoval, there was no assurance that the live wires were not live, and communications were not made to the employee of the independent contractor. Here, an assurance was made directly to the employee of the independent contractor that all nearby gas lines were, when in fact they were not.

	Based on the allegations, the alleged assurance by Defendant's manager that all nearby gas lines had been turned off and that nothing burning gas was in use, when in fact, a burner was on next to the oven, supports retained control over the contracted work, i.e., to repair an oven that was not working properly. By making such assurance, Defendant induced reliance by Plaintiff, and Defendant retained a sufficient degree of control over the manner of performing the contracted work because only Defendant could control whether all nearby gas lines had been turned off. In this regard, Defendant retained the right to take safety measures regarding Plaintiff's performance of the work entrusted to him. Additionally, Defendant exercised its retained control over the contracted work because Plaintiff spoke with Defendant's manager to make sure all nearby gas lines were disconnected since Plaintiff would be working on the gas lines, and Defendant's manager assured Plaintiff that all nearby gas lines had been turned off. Lastly, the failure to turn off all gas lines and/or ensure that no burning gas was in use affirmatively contributed to Plaintiff's injuries. "[A]ffirmative contribution need not always be in the form of actively directing a contractor or contractor's employee. There will be times when a hirer will be liable for his omissions. For example, if the hirer promises to undertake a particular safety measure, then the hirer's negligent failure to do so should result in liability if such negligence leads to an employee injury." (Hooker, supra, 27 Cal.4th at p. 212, fn. 3.) Assuming the truth of the allegations and all reasonable inferences, they are sufficient to fall within the retained control exception espoused in Hooker. On demurrer, a complaint must be liberally construed. (Code Civ. Proc. § 452; Stevens v. Superior Court (1999) 75 Cal. App. 4th 594, 601.) All material facts properly pleaded, and reasonable inferences, must be accepted as true. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal. 4th 962, 966-67.)
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		The demurrer to the First Amended Complaint is OVERRULED. Defendant to file an Answer within 10 days. Plaintiff to give notice 2. Case Management Conference
103	Yanishevskas vs. Laboratory Corporation of America Holdings 26-01545506	1. Demurrer to Complaint Defendant Laboratory Corporation of America Holdings (“Defendant”) demurs to the second and fourth causes of action of plaintiff Iryna Yanishevskas (“Plaintiff”) Complaint. Second Cause of Action for Negligence (Res Ipsa Loquitur) Defendant argues that res ipsa loquitur is a rule of evidence and not an independent ground of liability. Defendant further argues that Plaintiff’s first and third causes of action already allege negligence and whether Plaintiff will be entitled to a jury instruction on res ipsa loquitur based on those claims will be determined at trial, but Plaintiff cannot plead the doctrine of res ipsa loquitur as a separate cause of action. Plaintiff does not dispute that res ipsa loquitur is a presumption affecting the burden of producing evidence. However, Plaintiff requests leave to amend to incorporate the res ipsa loquitur allegations into the professional negligence cause of action. “Res ipsa loquitur is a rule concerning the presentation of evidence; it is not an independent ground of liability.” (Gicking v. Kimberlin (1985) 170 Cal.App.3d 73, 78.) Thus, Plaintiff’s attempt to plead an independent cause of action based on the res ipsa